

1. Definition

- 1.1 "Contract" means the terms and conditions contained herein, together with any Quotation, order, invoice or other document or amendments expressed to be supplemental to this Contract.
 - 1.2 "the Electrician" means Balance Electrical Limited T/A Balance Electrical, its successors and assigns or any person acting on behalf of and with the authority of Balance Electrical Limited T/A Balance Electrical.
 - 1.3 "Client" means the person/s or any person acting on behalf of and with the authority of the Client requesting the Electrician to provide the Works as specified in any proposal, quotation, order, invoice or other documentation, and: (a) if there is more than one Client, is a reference to each Client jointly and severally; and (b) if the Client is a part of a Trust, shall be bound in their capacity as a trustee; and (c) includes the Client's executors, administrators, successors and permitted assigns.
 - 1.4 "Works" means all Works or Materials supplied by the Electrician to the Client at the Client's request from time to time (where the context so permits the terms 'Works' or 'Materials' shall be interchangeable for the other).
 - 1.5 "Confidential Information" means information of a confidential nature whether oral, written or in electronic form including, but not limited to, this Contract, either party's intellectual property, operational information, know-how, trade secrets, financial and commercial affairs, contracts, client information (including but not limited to, "Personal Information" such as: name, address, D.O.B, occupation, driver's license details, electronic contact (email, Facebook or Twitter details), medical insurance details or next of kin and other contact information (where applicable), previous credit applications, credit history) and pricing details.
 - 1.6 "Price" means the Price payable (plus any Goods and Services Tax ("GST") where applicable) for the Works as agreed between the Electrician and the Client in accordance with clause 6 below.
- ### 2. Acceptance
- 2.1 The Client is taken to have exclusively accepted and is immediately bound, jointly and severally, by these terms and conditions if the Client places an order for or accepts delivery of any Works.
 - 2.2 These terms and conditions may only be amended with the consent of both parties in writing and shall prevail to the extent of any inconsistency with any other document or Contract between the Client and the Electrician.
 - 2.3 Any advice, recommendation, information, assistance or service provided by the Electrician in relation to Materials and Works supplied is given in good faith, is based on the Electrician's own knowledge and experience and shall be accepted without liability on the part of the Electrician and it shall be the responsibility of the Client to confirm the accuracy and reliability of the same in light of the use to which the Client makes or intends to make of the Materials or Works.
 - 2.4 In the event that the Electrician is required to provide the Works urgently, that may require the Electrician's staff to work outside normal business hours (including but not limited to working through lunch breaks, weekends and/or Public Holidays) then the Contract or reserves the right to charge the Client additional labour costs (penalty rates will apply), unless otherwise agreed between the Electrician and the Client.
 - 2.5 If the Electrician has been requested by the Client to diagnose a fault that requires investigation, disassembly and/or testing, all costs involved will be charged to the Client irrespective of whether or not the repair goes ahead.
 - 2.6 The Client accepts and acknowledges its obligation to provide all contract Works Insurance unless otherwise agreed to in writing prior to commencement of the Works.
 - 2.7 The Client acknowledges and accepts that the supply of Materials for accepted orders may be subject to availability and if, for any reason, Materials are not or cease to be available, the Electrician reserves the right to substitute comparable Materials (or components of the Materials) and vary the Price as per clause 6.2. In all such cases the Electrician will notify the Client in

advance of any such substitution, and also reserves the right to place the Client's order on hold until such time as the Electrician and the Client agree to such changes.

- 2.8 Electronic signatures shall be deemed to be accepted by either party providing that the parties have complied with Section 22 6 of the Contract and Commercial Law Act 2017 or any other applicable provisions of that Act or any Regulations referred to in that Act.

3. Authorised Representatives

- 3.1 Unless otherwise limited as per clause 3.2 the Client agrees that should the Client introduce any third party to the Electrician as the Client's duly authorised representative, that once introduced that person shall have the full authority of the Client to order any Materials or Works on the Client's behalf and/or to request any variation to the works on the Client's behalf (such authority to continue until all requested works have been completed or the Client otherwise notifies the Electrician in writing that said person is no longer the Client's duly authorised representative).
- 3.2 In the event that the Client's duly authorised representative as per clause 3.1 is to have only limited authority to act on the Client's behalf then the Client must specifically and clearly advise the Electrician in writing of the parameters of the limited authority granted to their representative.
- 3.3 The Client specifically acknowledges and accepts that they will be solely liable to the Electrician for all additional costs incurred by the Electrician (including the Electrician's profit margin) in providing any works, materials, works or variation/s requested by the Client's duly authorised representative (subject always to the limitations imposed under clause 3.2 (if any)).

4. Errors and Omissions

- 4.1 The Client acknowledges and accepts that the Electrician shall, without prejudice, accept no liability in respect of any alleged or actual error(s) and/or omission(s):
 - (a) resulting from an inadvertent mistake made by the Electrician in the formation and/or administration of this Contract; and/or
 - (b) contained in/omitted from any literature (hard copy and/or electronic) supplied by the Electrician in respect of the Works.
- 4.2 In the event such an error and/or omission occurs in accordance with clause 4.1, and is not attributable to the negligence and/or wilful misconduct of the Electrician; the Client shall not be entitled to treat this Contract as repudiated nor render it invalid.

5. Change in Control

- 5.1 The Client shall give the Electrician not less than fourteen (14) days prior written notice of any proposed change of ownership of the Client and/or any other change in the Client's details (including but not limited to, changes in the Client's name, address, contact phone or fax number/s, change of trustees or business practice). The Client shall be liable for any loss incurred by the Electrician as a result of the Client's failure to comply with this clause.

6. Price and Payment

- 6.1 At the Electrician's sole discretion the Price shall be the Electrician's quoted Price (subject to clause 6.2) which shall be binding upon the Electrician provided that the Client shall accept the Electrician's quotation in writing within thirty (30) days.
- 6.2 The Electrician reserves the right to change the Price:
 - (a) if a variation to the Materials which are to be supplied is requested; or
 - (b) if a variation to the Works originally scheduled (including any applicable plans or specifications) is requested; or
 - (c) where additional Works are required due to the discovery of hidden or unidentifiable difficulties (including, but not limited to, poor weather conditions, limitations to accessing the site, hard rock barriers below the surface, iron reinforcing rods in concrete, safety considerations, prerequisite work by any third party not being completed, change of design, or hidden pipes and wiring in walls etc.) which are only discovered on commencement of the Works; or
 - (d) in the event of increases to the Electrician in the cost of labour or materials which are beyond the Electrician's control.
- 6.3 Variations will be charged for based on the Electrician's quotation, and will be detailed in writing, and shown as variations on the Electrician's invoice. The Client shall be required to respond to any variation submitted by the Electrician within ten (10) working days. Failure to do so will entitle the Electrician to add the cost of the variation

to the Price. Payment for all variations must be made in full at the time of their completion.

- 6.4 At the Electrician's sole discretion a deposit may be required.
 - 6.5 Time for payment for the Works being of the essence, the Price will be payable by the Client on the date/s determined by the Electrician, which may be:
 - (a) by way of progress payments in accordance with the Electrician's specified progress payment schedule. Such progress payment claims may include the reasonable value of authorised variations and the value of any Materials delivered to the worksite but not yet installed;
 - (b) for certain approved Client's, due twenty (20) days following the end of the month in which a statement is posted to the Client's address or address for notices;
 - (c) the date specified on any invoice or other form as being the date for payment; or
 - (d) failing any notice to the contrary, the date which is seven (7) days following the date of any invoice given to the Client by the Electrician.
 - 6.6 Unless otherwise stated in writing, the Client shall be charged for the Electrician's travel costs by set fee, mileage fee or in any manner that the Electrician chooses.
 - 6.7 At the agreement of both parties, payment of the Price may be subject to retention by the Client of an amount (hereafter called the "Retention Money"), being a set amount or equal to a percentage of the Price. The Client shall hold the Retention Money for the agreed period following completion of the Works during which time all Works are to be completed and/or all defects are to be remedied. Any Retention Money applicable to this Contract are to be dealt with in accordance with section 18 of the Construction Contracts Act 2002.
 - 6.8 Payment may be made by electronic/on-line banking, or by any other method as agreed to between the Client and the Electrician.
 - 6.9 The Client shall not be entitled to set off against, or deduct from the Price, any sums owed or claimed to be owed to the Client by the Electrician nor to withhold payment of any invoice because part of that invoice is in default unless the request for payment by the Electrician is a claim made under the Construction Contracts Act 2002.
 - 6.10 Unless otherwise stated the Price does not include GST. In addition to the Price, the Client must pay to the Electrician an amount equal to any GST the Electrician must pay for any supply by the Electrician under this or any other Contract for the sale of the Materials. The Client must pay GST, without deduction or set off of any other amounts, at the same time and on the same basis as the Client pays the Price. In addition, the Client must pay any other taxes and duties that may be applicable in addition to the Price except where they are expressly included in the Price.
- ### 7. Provision of the Works
- 7.1 Subject to clause 7.2 it is the Electrician's responsibility to ensure that the Works start as soon as it is reasonably possible.
 - 7.2 The Works' commencement date will be put back and the completion date extended by whatever time is reasonable in the event that the Electrician claims an extension of time (by giving the Client written notice) where completion is delayed by an event beyond the Electrician's control, including but not limited to any failure by the Client to:
 - (a) make a selection; or
 - (b) have the site ready for the Works; or
 - (c) notify the Electrician that the site is ready; or
 - (d) where the Works are delayed by either the Client or any other third party.
 - 7.3 The Electrician may deliver the Works by separate instalments. Each separate instalment shall be invoiced and paid in accordance with the provisions in these terms and conditions.
 - 7.4 Any time specified by the Electrician for delivery of the Works is an estimate only and the Electrician will not be liable for any loss or damage incurred by the Client as a result of delivery being late. However, both parties agree that they shall make every endeavour to enable the Works to be supplied at the time and place as was arranged between both parties. In the event that the Electrician is unable to supply the Works as agreed solely due to any action or inaction of the Client, then the Electrician shall be entitled to charge a reasonable fee for re-supplying the Works at a later time and date, and/or for storage of the Materials.

- 7.5 Any recommendations, advice, assistance or information provided by the Electrician is provided in good faith and the Electrician shall not be liable in any way for any damage, loss or other costs in relation to the Client or their agent or other contractors reliance on the recommendations, advice, assistance or information. The Client, their agent or contractors take this recommendations, advice, assistance or information at their own risk and using their own judgement.
- 8. Risk**
- 8.1 If the Electrician retains ownership of the Materials under clause 14 then:
- (a) where the Electrician is supplying Materials only, all risk for the Materials shall immediately pass to the Client on delivery and the Client must insure the Materials on or before delivery. Delivery of the Materials shall be deemed to have taken place immediately at the time that the Materials are delivered by the Electrician or the Electrician's nominated carrier to the Client's nominated delivery address (even if the Client is not present at the address).
- (b) where the Electrician is to both supply and install Materials then the Electrician shall maintain a contract works insurance policy until the Works are completed. Upon completion of the Works all risk for the Works shall immediately pass to the Client.
- 8.2 Notwithstanding the provisions of clause 8.1 if the Client specifically requests the Electrician to leave Materials outside the Electrician's premises for collection or to deliver the Materials to an unattended location then such materials shall always be left at sole risk of the Client, and it shall be the Client's responsibility to ensure the Materials are insured adequately or at all. In the event that such Materials are lost, damaged or destroyed then replacement of the Materials shall be at the Client's expense.
- 8.3 The Client warrants that any structures to which the Materials are to be affixed are able to withstand the installation of the Materials and that any electrical connections (including, but not limited to, meter boxes, main switches, circuit breakers, and electrical cable) are of suitable capacity to handle the Materials once installed. If, for any reason (including the discovery of asbestos, defective or unsafe wiring, or dangerous access to roofing), the Electrician reasonably forms the opinion that the Client's premises is not safe for the installation of Materials to proceed then the Client shall be entitled to delay installation of the Materials (in accordance with the provisions of clause 7.2 above) until the Electrician is satisfied that it is safe for the installation to proceed.
- 8.4 In the event that the Electrician is required to switch off electrical supply during the course of the Works, then the Client acknowledges and understands that should the Client experience any loss of data or telephony service, then the Electrician shall not be held liable for any impact this may have on the Client's business operations.
- 8.5 In the event that the electrical wiring is required to be re-positioned at the request of any third party contracted by the Client then the Client agrees to notify the Electrician immediately upon any proposed changes. The Client agrees to indemnify the Electrician against any additional costs incurred with such a relocation of electrical wiring. All such variances shall be invoiced in accordance with clause 6.2.
- 8.6 The Electrician shall upon installation ensure that all Materials are to be installed in a manner that is fully compliant with industry standards. If, for any reason, the Client specifically requires the Materials to be installed in any way which goes against the Electrician's recommendations and/or falls below industry standards; a request detailing that requirement must be made in writing to the Electrician. Accordingly, the Electrician offers no warranty in regard to the aforementioned.
- 8.7 The Client acknowledges that:
- (a) the Electrician is only responsible for Materials that are replaced/supplied by the Electrician, and in the event that other parts/goods, subsequently fail, the Client agrees to indemnify the Electrician against any loss or damage to the Works, or caused by the goods, or any part thereof howsoever arising.
- (b) all descriptive specifications, illustrations, drawings, data dimensions, and weights stated in the Electrician's fact sheets, price lists or advertising material are indicative only and that they have not relied on such information.
- (c) Where the Electrician has performed temporary repairs that:
- (i) the Electrician offers no guarantee against the reoccurrence of the initial fault, or any further damage caused; and
- (ii) the Electrician will immediately advise the Client of the fault and shall provide the Client with an estimate for the full repair
- (d) Materials supplied may:
- (i) fade or change colour over time; and
- (ii) expand, contract or distort as a result of exposure to heat, cold, weather; and
- (iii) mark or stain if exposed to certain substances; and
- (iv) be damaged or disfigured by impact or scratching
- 8.8 The Electrician accepts no responsibility for any damage or performance related problems with any Materials where they have not been used and/or maintained in accordance with the Electrician's and/or the Manufacturers' recommendations.
- 9. Client's Responsibilities**
- 9.1 The Client acknowledges that in the event asbestos, or any other toxic substances are discovered at the site that it is their responsibility to ensure the safe removal of the same. The Client further agrees to indemnify the Electrician against any costs incurred by the Electrician as a consequence of such discovery. Under no circumstances will the Electrician handle removal of asbestos product. Until the Client has provided evidence to the Electricians that the substance is not dangerous or has been removed by a suitably qualified person, the Electrician may take any steps they see necessary including refusing to complete further works.
- 9.2 The Electrician is not responsible for the removal of rubbish from or clean-up of the building/constructions site/s. This is the responsibility of the Client or the Client's agent.
- 9.3 Any scaffolding the Electrician considers is required to complete the works in a safe manner will be the responsibility of the Client at the Client's cost. The scaffolding must be provided and erected by a professional scaffolding company and be acceptable to the Electrician at the Electrician's sole discretion.
- 9.4 The Client must provide the area of the Works clear from all furniture and obstructions. If the Electrician has to move anything from the area of the Works, if the Electrician chooses to do so, this will be done at the sole risk of the Client and any damage to the Client's property will not be the responsibility of the Electrician.
- 9.5 The Client is responsible for any materials or products that they supply. Any additional costs incurred because the materials provided are not fit for purpose for any reason including but not limited to being the wrong size; colour, rating, standard, quality, colour and finish, will be the Client's responsibility.
- 10. Accuracy of Clients Plans**
- 10.1 The Electrician shall be entitled to rely on the accuracy of any plans, specifications and other information provided by the Client. The Client acknowledges and agrees that in the event that any of this information provided by the Client is inaccurate, the Electrician accepts no responsibility for any loss, damages, or costs however resulting from these inaccurate plans, specifications or other information.
- 10.2 All customary building industry tolerances shall apply to the dimensions and measurements of the Materials unless the Electrician and the Client agree otherwise in writing.
- 10.3 If any reference to the position of any electrical installations is removed or covered up by the Client or the Client's contractors, then the Electrician shall not be responsible for any damage caused in relation to the locating of the installations. In this instance the installations will be at the sole discretion of the Electrician.
- 10.4 Any additional costs caused by Client not providing an acceptable plan or scope of work, will be the responsibility of the Client.
- 10.5 If the Client requests the Electrician to decide on the positioning of any electrical installations the Client shall be deemed to have accepted the positioning of such.
- 11. Underground Locations**
- 11.1 Prior to the Electrician commencing any work the Client must advise the Electrician of the precise location of all underground services on the site and clearly mark the same. The underground mains and services the Client must identify include, but are not limited to, electrical services, gas services, sewer services, pumping services, sewer connections, sewer sludge mains, water mains, irrigation pipes, telephone cables, fibre optic cables, oil pumping mains, and any other services that may be on site.
- 11.2 Whilst the Electrician will take all care to avoid damage to any underground services the Client agrees to indemnify the Electrician in respect of all and any liability claims, loss, damage, costs and fines as a result of damage to services not precisely located and notified as per clause 11.1.
- 12. Access**
- 12.1 The Client shall ensure that the Electrician always has clear and free access to the work site to enable them to undertake the Works. The Electrician shall not be liable for any loss or damage to the site (including, without limitation, damage to pathways, driveways and concreted or paved or grassed areas) unless due to the negligence of the Electrician.
- 13. Compliance with Laws**
- 13.1 Both the Client and the Electrician agree that they will at all times ensure that they comply with the provisions of all statutes, regulations and bylaws of government, local and other public authorities that may be applicable to the Works, including any Worksafe guidelines and the Health and Safety at Work Act 2015 relating to building/construction sites, and any other relevant safety standards or legislation, particularly those in relation to Asbestos/Hazardous materials and the safe removal and disposal of the same.
- 13.2 All work will be tested to ensure that it is electrically safe and is in accordance with the wiring rules and other standards applying to the electrical installation under the Electrical Safety Regulations. All of the cabling work will comply with the Australian and New Zealand Wiring standards.
- 13.3 If during the course of installation when the Works are being conducted within and around switchboards that if the same is found defective or deemed to be unsafe by the Electrician, then the Electrician shall notify the Client immediately. The power if isolated will not be re-energised until such time as the existing condition has been rectified and made safe in accordance to the Electrical Safety Regulations. The Client accepts and agrees that any costs associated with the rectification works including any materials and labour shall be to the Client's account.
- 13.4 Any live works or works undertaken near live conductors where it is safe to do so shall be dealt with in accordance with Australian and New Zealand Wiring standards being "Safe working on Low Voltage Electrical Installations, relevant Commonwealth and Statutory Acts and Workplace Regulations". The Electrician's live works procedures are designed to eliminate risk of injury to the Electrician's employees, damage to the Client's installations and unexpected power disconnections. It may in some cases require disconnection and isolation of the installation to undertake such Works for which additional charges may be applicable. This shall be invoiced in accordance with clause 7.2
- 13.5 The Electrician has not and will not at any time assume any obligation as the Client's agent or otherwise which may be imposed upon the Client from time to time pursuant to Health and Safety at work Act 2015, including any subsequent regulations (the "HSW Act") arising from the engagement of Works under this Contract. Unless otherwise agreed, the parties agree that for the purposes of the HSW Act, the Electrician shall not be the person who controls the place of work in terms of the HSW Act.
- 14. Title**
- 14.1 The Electrician and the Client agree that ownership of the Materials shall not pass until: (a) the Client has paid the Electrician all amounts owing to the Electrician; and (b) the Client has met all of its other obligations to the Electrician.
- 14.2 Receipt by the Electrician of any form of payment other than cash shall not be deemed to be payment until that form of payment has been honoured, cleared or recognised.
- 14.3 Risk for the materials shall move to the Client as soon as they accept delivery.
- 14.4 It is further agreed that:
- (a) until ownership of the Materials passes to the Client in accordance with clause 14.1 that the Client is only a bailee of the Materials and unless the Materials have become fixtures must return the Materials to the Electrician on request;
- (b) the Client holds the benefit of the Client's insurance of the Materials on trust for the Electrician and must pay to

- the Electrician the proceeds of any insurance in the event of the Materials being lost, damaged or destroyed;
- (c) the production of these terms and conditions by the Electrician shall be sufficient evidence of the Electrician's rights to receive the insurance proceeds direct from the insurer without the need for any person dealing with the Electrician to make further enquiries;
- (d) the Client must not sell, dispose, or otherwise part with possession of the Materials other than in the ordinary course of business and for market value. If the Client sells, disposes or parts with possession of the Materials then the Client must hold the proceeds of any such act on trust for the Electrician and must pay or deliver the proceeds to the Electrician on demand;
- (e) the Client should not convert or process the Materials or intermix them with other goods but if the Client does so then the Client holds the resulting product on trust for the benefit of the Electrician and must sell, dispose of or return the resulting product to the Electrician as it so directs;
- (f) unless the Materials have become fixtures the Client irrevocably authorises the Electrician to enter any premises where the Electrician believes the Materials are kept and recover possession of the Materials;
- (g) the Electrician may recover possession of any Materials in transit whether or not delivery has occurred;
- (h) the Client shall not charge or grant an encumbrance over the Materials nor grant nor otherwise give away any interest in the Materials while they remain the property of the Electrician;
- (i) the Electrician may commence proceedings to recover the Price of the Materials sold notwithstanding that ownership of the Materials has not passed to the Client.
- 15. Personal Property Securities Act 1999 ("PPSA")**
- 15.1 Upon assenting to these terms and conditions in writing the Client acknowledges and agrees that: (a) these terms and conditions constitute a security agreement for the purposes of the PPSA; and
- (b) a security interest is taken in all Materials and/or collateral (account) – being a monetary obligation of the Client to the Electrician for Works – that have previously been supplied and that will be supplied in the future by the Electrician to the Client.
- 15.2 The Client undertakes to:
- (a) sign any further documents and/or provide any further information (such information to be complete, accurate and up -to-date in all respects) which the Electrician may reasonably require to register a financing statement or financing change statement on the Personal Property Securities Register;
- (b) indemnify, and upon demand reimburse, the Electrician for all expenses incurred in registering a financing statement or financing change statement on the Personal Property Securities Register or releasing any Materials charged thereby;
- (c) not register, or permit to be registered, a financing statement or a financing change statement in relation to the Materials and/or collateral (account) in favour of a third party without the prior written consent of the Electrician; and
- (d) immediately advise the Electrician of any material change in its business practices of selling Materials which would result in a change in the nature of proceeds derived from such sales.
- 15.3 The Electrician and the Client agree that nothing in sections 114(1)(a), 133 and 134 of the PPSA shall apply to these terms and conditions.
- 15.4 The Client waives its rights as a debtor under sections 116, 120(2), 121, 125, 126, 127, 129, 131 and 132 of the PPSA.
- 15.5 Unless otherwise agreed to in writing by the Electrician, the Client waives its right to receive a verification statement in accordance with section 148 of the PPSA.
- 15.6 The Client shall unconditionally ratify any actions taken by the Electrician under clauses 15.1 to 15.5.
- 16. Security and Charge**
- 16.1 In consideration of the Electrician agreeing to supply the Works, the Client charges all of its rights, title and interest (whether joint or several) in any land, realty or other assets capable of being charged, owned by the Client either now or in the future, to secure the performance by the Client of its obligations under these terms and conditions (including, but not limited to, the payment of any money).
- 16.2 The Client indemnifies the Electrician from and against all the Electrician's costs and disbursements including legal costs on a solicitor and own client basis incurred in exercising the Electrician's rights under this clause.
- 16.3 The Client irrevocably appoints the Electrician and each director of the Electrician as the Client's true and lawful attorney/s to perform all necessary acts to give effect to the provisions of this clause 16 including, but not limited to, signing any document on the Client's behalf.
- 17. Defects In Materials**
- 17.1 The Client shall inspect the Materials on delivery and shall within seven (7) days of delivery (time being of the essence) notify the Electrician of any alleged defect, shortage in quantity, damage or failure to comply with the description or quote. The Client shall afford the Electrician an opportunity to inspect the Materials within a reasonable time following delivery if the Client believes the Materials are defective in any way. If the Client shall fail to comply with these provisions the Materials shall be presumed to be free from any defect or damage. For defective Materials, which the Electrician has agreed in writing that the Client is entitled to reject, the Electrician's liability is limited to either (at the Electrician's discretion) replacing the Materials or repairing the Materials.
- 17.2 Materials will not be accepted for return other than in accordance with 17.1 above.
- 18. Warranties**
- 18.1 For Materials not manufactured by the Electrician, the warranty shall be the current warranty provided by the manufacturer of the Materials. The Electrician shall not be bound by nor be responsible for any term, condition, representation or warranty other than that which is given by the manufacturer of the Materials.
- 18.2 The conditions applicable to the warranty given on Materials supplied by the Electrician are contained on the "Warranty Document" that will be supplied with the Materials.
- 18.3 In the case of second hand Materials, the Client acknowledges that full opportunity to inspect the same has been provided and accepts the same with all faults and that no warranty is given by the Electrician as to the quality or suitability for any purpose and any implied warranty, statutory or otherwise, is expressly excluded. The Electrician shall not be responsible for any loss or damage to the Materials, or caused by the Materials, or any part thereof however arising.
- 19. Consumer Guarantees Act 1993**
- 19.1 If the Client is acquiring Materials for the purposes of a trade or business, the Client acknowledges that the provisions of the Consumer Guarantees Act 1993 do not apply to the supply of Materials by the Electrician to the Client.
- 20. Intellectual Property**
- 20.1 Where the Electrician has designed, drawn, written plans or a schedule of Works, or created any products for the Client, then the copyright in all such designs, drawings, documents, plans, schedules and products shall remain vested in the Electrician, and shall only be used by the Client at the Electrician's discretion. Under no circumstances may such designs, drawings and documents be used without the express written approval of the Electrician.
- 20.2 The Client warrants that all designs, specifications or instructions given to the Electrician will not cause the Electrician to infringe any patent, registered design or trademark in the execution of the Client's order and the Client agrees to indemnify the Electrician against any action taken by a third party against the Electrician in respect of any such infringement.
- 20.3 The Client agrees that the Electrician may (at no cost) use for the purposes of marketing or entry into any competition, any documents, photos, designs, drawings, plans or products which the Electrician has created for the Client.
- 21. Default and Consequences of Default**
- 21.1 Interest on overdue invoices shall accrue daily from the date when payment becomes due, until the date of payment, at a rate of two and a half percent (2.5%) per calendar month (and at the Electrician's sole discretion such interest shall compound monthly at such a rate) after as well as before any judgment.
- 21.2 If the Client owes the Electrician any money the Client shall indemnify the Electrician from and against all costs and disbursements incurred by the Electrician in recovering the debt (including but not limited to internal administration fees, legal costs on a solicitor and own client basis, the Electrician's collection agency costs, and bank dishonour fees).
- 21.3 Further to any other rights or remedies the Electrician may have under this Contract, if a Client has made payment to the Electrician, and the transaction is subsequently reversed, the Client shall be liable for the amount of the reversed transaction, in addition to any further costs incurred by the Electrician under this clause 21, where it can be proven that such reversal is found to be illegal, fraudulent or in contravention to the Client's obligations under this Contract.
- 21.4 Without prejudice to the Electrician's other remedies at law the Electrician shall be entitled to cancel all or any part of any order of the Client which remains unfulfilled and all amounts owing to the Electrician shall, whether or not due for payment, become immediately payable if:
- (a) any money payable to the Electrician becomes overdue, or in the Electrician's opinion the Client will be unable to make a payment when it falls due;
- (b) the Client has exceeded any applicable credit limit provided by the Electrician;
- (c) the Client becomes insolvent or bankrupt, convenes a meeting with its creditors or proposes or enters into an arrangement with creditors, or makes an assignment for the benefit of its creditors; or
- (d) a receiver, manager, liquidator (provisional or otherwise) or similar person is appointed in respect of the Client or any asset of the Client.
- 22. Cancellation**
- 22.1 Without prejudice to any other rights or remedies the Electrician may have, if at any time the Client is in breach of any obligation (including those relating to payment and/or failure to remedy any breach in respect of this Contract within ten (10) working days of receipt by the Client of such notice/s) then the Electrician may suspend the Works immediately. The Electrician will not be liable to the Client for any loss or damage the Client suffers because the Electrician has exercised its rights under this clause.
- 22.2 The Electrician may cancel any Contract to which these terms and conditions apply or cancel delivery of Works at any time before the Works are commenced by giving written notice to the Client. On giving such notice the Electrician shall repay to the Client any sums paid in respect of the Price, less any amounts owing by the Client to the Electrician for Works already performed. The Electrician shall not be liable for any loss or damage whatsoever arising from such cancellation.
- 22.3 In the event that the Client cancels the delivery of Works the Client shall be liable for any and all loss incurred (whether direct or indirect) by the Electrician as a direct result of the cancellation (including, but not limited to, any loss of profits).
- 22.4 Cancellation of orders for products made to the Client's specifications, or for non-stocklist items, will definitely not be accepted once production has commenced, or an order has been placed.
- 23. Privacy Policy**
- 23.1 All emails, documents, images or other recorded information held or used by the Electrician is Personal Information as defined and referred to in clause 23.3 and therefore considered confidential. The Electrician acknowledges its obligation in relation to the handling, use, disclosure and processing of Personal Information pursuant to the Privacy Act 1993 ("the Act") including Part II of the OECD Guidelines and as set out in Schedule 5A of the Act and any statutory requirements where relevant in a European Economic Area "EEA" then the EU Data Privacy Laws (including the General Data Protection Regulation "GDPR") (collectively, "EU Data Privacy Laws"). The Electrician acknowledges that in the event it becomes aware of any data breaches and/or disclosure of the Client's Personal Information, held by the Electrician that may result in serious harm to the Client, the Electrician will notify the Client in accordance with the Act and/or the GDPR. Any release of such Personal Information must be in accordance with the Act and the GDPR (where relevant) and must be approved by the Client by written consent, unless subject to an operation of law.
- 23.2 Notwithstanding clause 23.1, privacy limitations will extend to the Electrician in respect of Cookies where transactions for purchases/orders transpire directly from the Electrician's website. The Electrician agrees to display reference to such Cookies and/or similar tracking technologies, such as pixels and web beacons (if applicable), such technology allows the collection of

Personal Information such as the Client's: (a) IP address, browser, email client type and other similar details; (b) tracking website usage and traffic; and (c) reports are available to the Electrician when the Electrician sends an email to the Client, so the Electrician may collect and review that information ("collectively Personal Information") in order to enable / disable the collection of Personal Information by way of Cookies, the Client shall have the right to enable / disable the Cookies first by selecting the option to enable / disable, provided on the website prior to proceeding with a purchase/order via the Electrician's website.

23.3 The Client authorises the Electrician or the Electrician's agent to:

- (a) access, collect, retain and use any information about the Client;
- (i) (including, name, address, D.O.B, occupation, driver's license details, electronic contact (email, Facebook or Twitter details), medical insurance details or next of kin and other contact information (where applicable), previous credit applications, credit history or any overdue fines balance information held by the Ministry of Justice) for the purpose of assessing the Client's creditworthiness; or
- (ii) for the purpose of marketing products and services to the Client.
- (b) disclose information about the Client, whether collected by the Electrician from the Client directly or obtained by the Electrician from any other source to any other credit provider or any credit reporting agency for the purposes of providing or obtaining a credit reference, debt collection or notifying a default by the Client.

23.4 Where the Client is an individual the authorities under clause 23.3 are authorities or consents for the purposes of the Privacy Act 1993.

23.5 The Client shall have the right to request the Electrician for a copy of the Personal Information about the Client retained by the Electrician and the right to request the Electrician to correct any incorrect Personal Information about the Client held by the Electrician.

24. Suspension of Works

24.1 Where the Contract is subject to the Construction Contracts Act 2002, the Client hereby expressly acknowledges that:

- (a) the Electrician has the right to suspend work within five (5) working days of written notice of its intent to do so if a payment claim is served on the Client, and:
- (i) the payment is not paid in full by the due date for payment in accordance with clause 6.5 and/or any subsequent amendments or new legislation and no payment schedule has been given by the Client; or
- (ii) a scheduled amount stated in a payment schedule issued by the Client in relation to the payment claim is not paid in full by the due date for its payment; or
- (iii) the Client has not complied with an adjudicator's notice that the Client must pay an amount to the Electrician by a particular date; and
- (iv) the Electrician has given written notice to the Client of its intention to suspend the carrying out of construction work under the construction contract.
- (b) if the Electrician suspends work, it:
- (i) is not in breach of Contract; and
- (ii) is not liable for any loss or damage whatsoever suffered, or alleged to be suffered, by the Client or by any person claiming through the Client; and
- (iii) is entitled to an extension of time to complete the Contract; and
- (iv) keeps its rights under the Contract including the right to terminate the Contract; and may at any time lift the suspension, even if the amount has not been paid or an adjudicator's determination has not been complied with.
- (c) if the Electrician exercises the right to suspend work, the exercise of that right does not:
- (i) affect any rights that would otherwise have been available to the Electrician under the Contract and Commercial Law Act 2017; or
- (ii) enable the Client to exercise any rights that may otherwise have been available to the Client under that Act as a direct consequence of the Electrician suspending work under this provision;
- (d) due to any act or omission by the Client, the Client effectively precludes the Electrician from continuing the Works or performing or complying with the Electrician's obligations under this Contract, then without prejudice to the Electrician's other rights and remedies, the Electrician may suspend the Works immediately after serving on the

Client a written notice specifying the payment default or the act, omission or default upon which the suspension of the Works is based. All costs and expenses incurred by the Electrician as a result of such suspension and commencement shall be payable by the Client as if they were a variation.

24.2 If pursuant to any right conferred by this Contract, the Electrician suspends the Works and the default that led to that suspension continues un-remedied subject to clause 22.1 for at least ten (10) working days, the Electrician shall be entitled to terminate the Contract, in accordance with clause 22.

25. Service of Notices

25.1 Any written notice given under this Contract shall be deemed to have been given and received:

- (a) by handing the notice to the other party, in person;
- (b) by leaving it at the address of the other party as stated in this Contract;
- (c) by sending it by registered post to the address of the other party as stated in this Contract;
- (d) if sent by facsimile transmission to the fax number of the other party as stated in this Contract (if any), on receipt of confirmation of the transmission;
- (e) if sent by email to the other party's last known email address.

25.2 Any notice that is posted shall be deemed to have been served, unless the contrary is shown, at the time when by the ordinary course of post, the notice would have been delivered.

26. Trusts

26.1 If the Client at any time upon or subsequent to entering into the Contract is acting in the capacity of trustee of any trust ("Trust") then whether or not the Electrician may have notice of the Trust, the Client covenants with the Electrician as follows:

- (a) the Contract extends to all rights of indemnity which the Client now or subsequently may have against the Trust and the trust fund;
- (b) the Client has full and complete power and authority under the Trust to enter into the Contract and the provisions of the Trust do not purport to exclude or take away the right of indemnity of the Client against the Trust or the trust fund. The Client will not release the right of indemnity or commit any breach of trust or be a party to any other action which might prejudice that right of indemnity;
- (c) the Client will not without consent in writing of the Electrician (the Electrician will not unreasonably withhold consent), cause, permit, or suffer to happen any of the following events:
 - (i) the removal, replacement or retirement of the Client as trustee of the Trust; (ii) any alteration to or variation of the terms of the Trust;
 - (iii) any advancement or distribution of capital of the Trust; or
 - (iv) any resettlement of the trust property.

27. General

27.1 Any dispute or difference arising as to the interpretation of these terms and conditions or as to any matter arising hereunder, shall be submitted to, and settled by, either adjudication in accordance with the Construction Contracts Act 2002 and/or by arbitration in accordance with the Arbitration Act 1996 or its replacement(s).

27.2 The failure by either party to enforce any provision of these terms and conditions shall not be treated as a waiver of that provision, nor shall it affect that party's right to subsequently enforce that provision. If any provision of these terms and conditions shall be invalid, void, illegal or unenforceable the validity, existence, legality and enforceability of the remaining provisions shall not be affected, prejudiced or impaired.

27.3 These terms and conditions and any Contract to which they apply shall be governed by the laws of New Zealand and are subject to the jurisdiction of the Wellington Courts of New Zealand.

27.4 The Electrician shall be under no liability whatsoever to the Client for any indirect and/or consequential loss and/or expense (including loss of profit) suffered by the Client arising out of a breach by the Electrician of these terms and conditions (alternatively the Electrician's liability shall be limited to damages which under no circumstances shall exceed the Price of the Works).

27.5 The Electrician may licence and/or assign all or any part of its rights and/or obligations under this Contract without the Client's consent.

27.6 The Client cannot licence or assign without the written approval of the Electrician.

27.7 The Electrician may elect to subcontract out any part of the Works but shall not be relieved from any liability or obligation under this Contract by so doing. Furthermore, the Client agrees and understands that they have no authority to give any instruction to any of the Electrician's sub-contractors Electrician without the authority of the Electrician.

27.8 The Client agrees that the Electrician may amend these terms and conditions by notifying the Client in writing. These changes shall be deemed to take effect from the date on which the Client accepts such changes, or otherwise at such time as the Client makes a further request for the Electrician to provide Works to the Client.

27.9 Neither party shall be liable for any default due to any act of God, war, terrorism, strike, lock-out, industrial action, fire, flood, storm or other event beyond the reasonable control of either party.

27.10 Both parties warrant that they have the power to enter into this Contract and have obtained all necessary authorisations to allow them to do so, they are not insolvent and that this Contract creates binding and valid legal obligations on them.

27.11 The Electrician will hold public liability insurance of at least \$5 million. It is the Client's responsibility to ensure that they are similarly insured.

Client Signature Accepting Terms

Date